

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 12
SEPTEMBER 23, 2026
8:30 a.m.

1. ASTRID RAMIREZ V. ADRIAN COYOTL

26FL0808

This matter is before the court for hearing of the Request for Order (RFO) filed by the Petitioner on August 24, 2026, to set spousal support and child support for the parties' three minor children. The RFO also included a request for order shortening time, which the court granted. The court ordered Petitioner to serve the RFO on or before August 31, 2026, and ordered the Respondent to file and serve a Responsive Declaration on or before September 14, 2026.

Petitioner previously filed an Income and Expense Declaration (I&E) on August 20, 2026. Proof of service of summons, filed September 02, 2026, shows that Petitioner's RFO and I&E were both personally served upon Respondent on September 01, 2026. This is untimely service under the court's order shortening time, which required service to be made on or before August 31, 2026.

Nonetheless, on September 11, 2026, Respondent filed a timely Responsive Declaration and I&E, copies of which were personally served upon Petitioner that same day per the proof of service filed September 14, 2026. Based on these filings, the court finds Respondent has waived any defect in service of the RFO.

On September 17, 2026, Petitioner filed a Reply Declaration, a copy of which was electronically served upon Respondent on September 18, 2026, per the proof of service filed that same date. Proof of service filed September 17, 2026, shows Petitioner also served a copy of her Reply Declaration that day via mail.

Pursuant to the Temporary Restraining Order issued August 26, 2026, in this case, Petitioner has temporary sole physical custody of the children and Respondent has non-professionally supervised visitation with the children two days per week for up to two hours each visit. Therefore, for purposes of calculating child support, the court finds that Respondent's custody timeshare is 2 percent.

Petitioner's I&E indicates she works as a housekeeper for Cedar Pines Resort cleaning rental cabins. Petitioner is paid \$80 per cabin she cleans. However, she does not indicate how many cabins she cleans. She states she is paid in cash and does not receive any paystubs. Her I&E indicates her average monthly income is \$2,000.

In his Responsive Declaration, Respondent claims that Petitioner's gross monthly income is actually about \$3,000 to \$4,000.¹ In her Reply Declaration, Petitioner declares her average monthly income "is more like \$3,200 over the course of the past," but explains that when the season is "slow" she does not make enough money.

Respondent's I&E indicates he began a new job on September 03, 2026, at Edify Construction, where he earns \$18 per hour. As of September 11, 2026 (the date Respondent filed his I&E), he had not received a paycheck yet. On September 3, 2026, Respondent worked eight hours; on September 4, 2026, five hours; on September 8, 2026,

¹ Petitioner claims that Respondent illegally obtained evidence of Petitioner's income by breaking into the residence where Petitioner was staying and accessing Petitioner's laptop.

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four hours; and on September 09, 2026, five hours. The court calculates Respondent's current gross monthly income as \$2,340 (\$18 per hour x 30 hours per week x 52 weeks per year = \$28,080; \$28,080 / 12 months = \$2,340 per month).

As shown in the attached XSpouse calculation printout, Respondent is ordered to pay Child Support to the Petitioner in the amount of \$1,012.00 beginning September 01, 2026, and the first of each month thereafter until further order of the court. Respondent is not required to pay any Spousal Support at this time.²

The court sets a review hearing for December 30, 2026, to be heard concurrently with the hearing on Petitioner's RFO filed August 20, 2026. The court will retain jurisdiction over the issue of child support and spousal support, including jurisdiction to retroactively modify the support amounts based upon updated information provided to the court. The court orders both parties to file and serve a current I&E, as well as any supplemental declarations, on or before December 18, 2026.

TENTATIVE RULING #1: RESPONDENT IS ORDERED TO PAY CHILD SUPPORT TO THE PETITIONER IN THE AMOUNT OF \$1,012.00 BEGINNING SEPTEMBER 01, 2026, AND THE FIRST OF EACH MONTH THEREAFTER UNTIL FURTHER ORDER OF THE COURT. RESPONDENT IS NOT REQUIRED TO PAY ANY SPOUSAL SUPPORT AT THIS TIME.

THE COURT SETS A REVIEW HEARING FOR DECEMBER 30, 2026, TO BE HEARD CONCURRENTLY WITH THE HEARING ON PETITIONER'S RFO FILED AUGUST 20, 2026. THE COURT WILL RETAIN JURISDICTION OVER THE ISSUE OF CHILD SUPPORT AND SPOUSAL SUPPORT, INCLUDING JURISDICTION TO RETROACTIVELY MODIFY THE SUPPORT AMOUNTS BASED UPON UPDATED INFORMATION PROVIDED TO THE COURT. THE COURT ORDERS BOTH PARTIES TO FILE AND SERVE A CURRENT I&E, AS WELL AS ANY SUPPLEMENTAL DECLARATIONS, ON OR BEFORE DECEMBER 18, 2026.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07.

² The XSpouse calculation shows that, as the higher earner, Petitioner would generally be responsible for paying Respondent \$235 Spousal Support under the guideline formula. However, there is presently no request before the court to order Petitioner to pay Respondent Spousal Support.

Fixed Shares	Father	Mother	Monthly figures		Cash Flow	Guideline	Proposed
#of children	0	3	2026				
% time with NCP	2.00 %	0.00 %	GUIDELINE		Comb. net spendable	5871	5871
Filing status	HH/MLA	HH/MLA	Nets(adjusted)		Percent change	0%	0%
# exemptions	1 *	4 *	Support		Father		
Wages+salary	2340	3200	Father	2102	Payment cost/benefit	-777	-777
Self-employed income	0	0	Mother	3769	Net spendable income	1324	1324
Other taxable income	0	0	Total	5871	Change from guideline	0	0
TANF+CS received	0	0	Support		% of combined spendable	23%	23%
Other nontaxable income	0	0	Addons	0	% of saving over guideline	0%	0%
New spouse income	0	0	Guideln CS	-1012	Total taxes	238	238
401(k) employee contrib	0	0	Alameda SS	235	Dep. exemption value	0	0
Adjustments to income	0	0	Total	-777	# withholding allowances	0	0
SS paid prev marriage	0	0	CS range: -726--1012		Net wage paycheck	2026	2026
CS paid prev marriage	0	0			Mother		
Health insurance	0	0			Payment cost/benefit	777	777
Other medical expense	0	0			Net spendable income	4547	4547
Property tax expense	0	0			Change from guideline	0	0
Ded interest expense	0	0	Proposed		% of combined spendable	77%	77%
Charitable contributions	0	0	Tactic 9		% of saving over guideline	0%	0%
Misc tax deductions	0	0	CS	-1012	Total taxes	-569	-569
Qual bus income ded	0	0	SS	235	Dep. exemption value	0	0
Required union dues	0	0	Total	-777	# withholding allowances	0	0
Mandatory retirement	0	0	Saving	0	Net wage paycheck	2685	2685
Hardship deduction	0 *	0 *	Releases	0			
Other GDL deductions	0	0					
Child care expenses	0	0					

Father pays Guideline CS, Proposed CS

Mother pays Guideline SS, Proposed SS

FC 4055 checking: ON

Per Child Information									
	Timeshare	cce(F)	cce(M)	Addons	Payor	Basic CS	Payor	Pres CS	Payor
All children	1 - 99	0	0	0	Father	1012	Father	1012	Father
	2 - 98	0	0	0	Father	200	Father	200	Father
	2 - 98	0	0	0	Father	303	Father	303	Father
	2 - 98	0	0	0	Father	509	Father	509	Father

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2. DAVID SMITH V. CYNTHIA SMITH

22FL0136

This matter is before the court for hearing of the Request for Order (RFO) filed by the Petitioner on July 29, 2026, to compel Respondent's required disclosures under Family Code sections 2104 and 2105.

A hearing on the RFO was originally set for September 09, 2026. On September 08, 2026, the court issued a tentative ruling that incorrectly stated there was no proof of service for the RFO in the court's file. In fact, Petitioner filed proof of service on August 12, 2026, which shows the RFO was personally served upon Respondent on August 11, 2026. During the September 9 hearing, the court vacated its tentative ruling and continued the matter to September 23, 2026. The court ordered Petitioner to serve Respondent notice of the continued hearing date, as well as the court's tentative ruling issued September 08, 2026. On September 15, 2026, Petitioner filed the required proof of service, showing personal service of the September 08, 2026, tentative ruling and September 09, 2026, minute order on September 12, 2026.

Also on September 15, 2026, Respondent filed a Declaration Regarding Service of Declaration of Disclosure and Income and Expense Declaration (Judicial Council form FL-141), indicating that she served the required preliminary and final disclosures upon Petitioner via mail that same day. Therefore, the Petitioner's RFO appears to be moot.

The court denies the RFO as moot.

TENTATIVE RULING #2: THE COURT DENIES PETITIONER'S RFO AS MOOT.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07.

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3. JEFFREY STEVEN VANHEE V. ASHLEY NICHOLE VANHEE

25FL0526

This matter is before the court for hearing of the Request for Order (RFO) filed by the Petitioner on August 20, 2026, to modify child custody and visitation and award \$5,060 in attorney's fees and costs. The RFO also included a request for temporary emergency orders and an order shortening time, both of which the court granted. The court ordered Petitioner to serve the RFO on or before August 24, 2026, and ordered Respondent to file and serve a Responsive Declaration on or before September 04, 2026. Additionally, the court issued the following temporary emergency orders pending the September 23, 2026, hearing: Respondent shall immediately return the children to El Dorado County, California and (1) ensure that the children attend school, and (2) ensure that Petitioner gets his visitations as ordered by this court on August 19, 2026.

To date, there is no proof of service in the court's file. Respondent filed no Responsive Declaration. Due to the lack of service, the court drops the matter from the calendar. The court hereby terminates the temporary emergency orders issued August 20, 2026 (the visitation orders issued August 19, 2026, remain in effect).

TENTATIVE RULING #3: DUE TO THE LACK OF SERVICE, MATTER IS DROPPED FROM THE CALENDAR. THE COURT HEREBY TERMINATES THE TEMPORARY EMERGENCY ORDERS ISSUED ON AUGUST 20, 2026.

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4. LAUREN RUSSELL V. MATTHEW CADENA

SFL20210110

This matter is before the court for a five-year dismissal hearing under Code of Civil Procedure section 583.310, which provides, “[a]n action shall be brought to trial within five years after the action is commenced against the defendant.” (Code Civ. Proc., § 583.310.) The action was filed on August 06, 2021.

The matter was previously set for hearing on August 19, 2026. However, the court continued the August 19 hearing to September 23, 2026, finding that the court had provided insufficient notice of the August 19, 2026, hearing date. The court mailed Petitioner a copy of its minute order issued August 19, 2026, to Petitioner’s address on file; however, the mail was returned undeliverable.

Pursuant to Code of Civil Procedure section 583.310, the court dismisses the action without prejudice.

TENTATIVE RULING #4: PURSUANT TO CODE OF CIVIL PROCEDURE SECTION 583.310, THE COURT DISMISSES THE ACTION WITHOUT PREJUDICE. NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT’S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07.

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5. SAMARA GALLAGHER V. ERIC GOMEZ

26FL0656

This matter is before the court for hearing of the Request for Order (RFO) filed by the Petitioner on August 14, 2026, to award child support retroactive to July 07, 2026 (the date the petition for dissolution was filed). Petitioner previously filed her Income and Expense Declaration (I&E) on July 07, 2026. Proof of service of summons filed July 17, 2026, shows the I&E was personally served upon Respondent on July 11, 2026.

To date, however, there is no proof of service for the RFO in the court's file. Respondent filed no Responsive Declaration. Due to the lack of service of the RFO, the court drops the matter from the calendar.

TENTATIVE RULING #5: DUE TO THE LACK OF SERVICE OF THE RFO, MATTER IS DROPPED FROM THE CALENDAR.

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6. SANDRA GAIL WIRTH V. ROBERT JON WIRTH

SFL20160123

This matter is before the court for hearing of the Request for Order (RFO) filed by the Petitioner on August 11, 2026, to compel Respondent's further discovery responses, as well as a Trial Setting Conference. The court continued the hearing on Petitioner's RFO from September 02, 2026.

TENTATIVE RULING #6: APPEARANCES ARE REQUIRED AT 8:30 A.M., WEDNESDAY, SEPTEMBER 23, 2026, IN DEPARTMENT 12 FOR FURTHER ORAL ARGUMENT REGARDING THE RFO TO COMPEL DISCOVERY RESPONSES, AND TO PARTICIPATE IN THE SELECTION OF MANDATORY SETTLEMENT CONFERENCE AND TRIAL DATES.

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7. SAVANNA ARNETT V. GAVIN NISHIHIRA

25FL1181

This matter is before the court for review following the CCRC counsellor's interview of the parties' children, as well as a Trial Readiness Conference for the trial on Petitioner's contested move-away motion set for September 24, 2026.

The court has read and considered the CCRC report submitted on September 11, 2026, a copy of which was mailed to both parties on September 14, 2026, per the Clerk's Certificate of Mailing. Appearances are required to confirm readiness for trial.

**TENTATIVE RULING #7: APPEARANCES ARE REQUIRED AT 8:30 A.M.,
WEDNESDAY, SEPTEMBER 23, 2026, IN DEPARTMENT 12.**

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8. STEPHAN HAASE V. TAYLOR BROOKE MYATT

23FL0933

TENTATIVE RULING #8: APPEARANCES ARE REQUIRED AT 8:30 A.M., WEDNESDAY, SEPTEMBER 23, 2026, IN DEPARTMENT 12 FOR ORAL ARGUMENT ON THE REQUEST FOR ORDER FILED BY THE PETITIONER ON JUNE 30, 2026, AS REQUESTED BY THE PETITIONER ON SEPTEMBER 15, 2026, IN RESPONSE TO THE COURT'S TENTATIVE RULING ISSUED THAT DATE.